

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, MAY 12, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, May 12, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, May 11, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0087555 Philadelphia Indemnity Ins. Co. v. Lewis, Deann

Motion to Substitute Party

Cross-complainants Jennifer Flippen-Black and Justin Black's unopposed motion is granted. If a cause of action survives death of a party, on motion "the court shall allow" substitution by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., §§ 377.31 [decedent's cause of action]; 377.41 [cause of action against a decedent].) "Personal representative" is defined to include the executor of an estate. (Prob. Code, § 58.)

Here, cross-complainants present evidence that cross-defendant Jimmy Joseph Gloria is deceased and that Angie Brown has been appointed as the executor of his estate. Cross-complainants' breach of contract and related claims survive the death of cross-defendant. Accordingly, Angie Brown is substituted into the case as the personal representative for the estate of Jimmy Joseph Gloria.

2. **M-CV-0089133 US Bank NA v. Togar, Tito**

Motion for Summary Judgment

Request for Judicial Notice

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff moves for summary judgment.

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c (a)(1).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c (c); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

This action stems from an alleged breach of contract on a line of credit account. Defendant has not filed an opposition or response.

The elements for a breach of contract cause of action are: (a) the existence of a contract; (b) the plaintiff's performance or excuse for nonperformance; (c) the defendant's breach under the terms of the contract; and (d) resulting damages to the plaintiff. (*Jade Fashion & Co. v. Harkham Indus., Inc.* (2014) 229 Cal. App. 4th 635, 645.) Plaintiff filed a Separate Statement of Undisputed Material Facts (Separate Statement) in support of the motion to establish the elements of breach of contract.

Defendant applied to plaintiff for a credit card account and entered into a written credit card account agreement with plaintiff for the account number ending in 7343 (the account). (See Separate Statement 1.) The defendant agreed to be bound by the terms and conditions set forth in the cardmember agreement when the defendant applied for, received or used the credit card account. In addition, the cardmember agreement provides that use of the card constitutes acceptance of the agreement. (See Separate Statement 2, 11.) By use of the card, defendant agreed to pay plaintiff for all charges made on this account, bearing the account number ending in 7343. (See Separate Statement 2.) Plaintiff complied with its obligations under the agreement by paying vendors for all charges that were made on defendant's account. (See Separate Statement 3.) Defendant received billing statements yet failed to produce any evidence indicating that defendant disputed any portion of any billing statement. (See Separate Statement 4, 5.) The defendant defaulted by failing to make payments on the account as they became due. (See Separate Statement 6.) The last payment applied to the account was on or about September 22, 2023. (See Separate Statement 7.)

Plaintiff meets its burden as the moving party to establish entitlement to judgment as a matter of law, shifting the burden to defendant to establish a triable issue of material fact. As defendant filed no opposition to the present motion, defendant fails to meet its burden and the evidence presented is unopposed on the record. (Code Civ. Proc. § 437c (c); *Aguilar, supra*, 25 Cal.4th at 850.)

Based on the foregoing, plaintiff's motion for summary judgment is granted.

3. M-CV-0094075 Jin, Yurong v. Li, Yuejia

Motion to Stay the Execution of Judgment

Appearance of the parties is required on **May 12, 2026 at 8:30 a.m. in Department 42.**

4. M-CV-0095721 Marie E Gallagher 2003 Trust v. Gallagher, Richard

Motion to Set Aside Default and Default Judgment

Defendant Richard Gallagher moves for a stay in execution of judgment and asks that default and default judgment be set aside. The court deemed this motion to be a motion to set aside pursuant to Code of Civil Procedure section 473(b) by its order scheduling this hearing. (Ruling on ex parte application, Apr. 29, 2026.) Plaintiff opposes the motion.

The court may “upon any terms as may be just” set aside default due to the moving party’s “mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) A motion to set aside default must be made “within a reasonable time, in no case exceeding six months” from the entry of default. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence and must bring the motion within 180 days. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant’s motion is timely brought within one month of entry of default and default judgment. As to grounds for relief, defendant declares he was never served with the summons and complaint. A proof of service filed March 3, 2026 shows defendant Gallagher was served by substitute service pursuant to Code of Civil Procedure section 415.20(b) by leaving a copy of the summons and complaint with Gregory Sansenbach on March 1, 2026 and by mailing the same on March 2, 2026. Defendant Gallagher argues that this service was not effective due to the disability of Sansenbach. While the court has insufficient information to determine the effectiveness of this service, it does appear to the court the service did not result in actual notice to defendant. Defendant’s failure to timely respond to the complaint constitutes sufficient “mistake, inadvertence, surprise, or excusable neglect” within the meaning of Code of Civil Procedure section 473(b). Moreover, the court observes that plaintiff filed a notice of errata on February 10, 2026, supplementing the complaint. There is no evidence in the court’s file the notice of errata was ever served on defendants.

Based on the foregoing, the motion is granted. Default of defendant Gallagher entered March 30, 2026 and default judgment entered April 3, 2026 are set aside. The writ of

possession issued April 8, 2026 is vacated. Defendant shall file and serve his answer to the complaint by May 18, 2026.

Order to Show Cause

In reviewing defendant Gallagher's motion above, the court observes that plaintiff filed a notice of errata on February 10, 2026, supplementing the complaint. There is no evidence in the court's file the notice of errata was ever served on defendants. The court, on its own motion, schedules an order to show cause hearing on **May 18, 2026 at 3:30 p.m. in Department 40** regarding setting aside the default and default judgment as to defendant Gregory Sansenbach. Plaintiff shall appear and show cause, if any, why default and default judgment as to defendant Gregory Sansenbach should not be set aside.

The clerk is directed to provide notice of this order and the order to show cause hearing on all parties.

5. M-CV-0096555 Sansom, James v. Chiang, Jennifer

Defendants are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the First Amended Complaint ("FAC")

Defendants demur to the FAC in this unlawful detainer action.

The court on its own motion takes judicial notice of the complaint filed March 12, 2026 and the FAC filed April 2, 2026. Plaintiff's request for judicial notice is denied because plaintiff does not specify what documents in the case files of which the court should take judicial notice. Moreover, plaintiff is reminded that each case is determined on its own merits.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendants argue the FAC fails to state a cause of action for unlawful detainer because the 3-day notice to pay or quit provided as Exhibit 2 to the FAC shows service by posting but fails in the same document to show mailing. Code of Civil Procedure section 1162 permits personal service, service by substitution, or if no person may be found at the

premises then by posting and mailing. (Code Civ. Proc., § 1162, subd. (a)(1)–(3).) The initial complaint in this action provided the 3-day notice to pay or quit as Exhibit 2 with an attached proof of service showing service by posting only on March 5, 2026, which is not a permissible method of service. Plaintiff has attempted to address this issue by filing the FAC—the operative pleading—which now shows posting and mailing on March 5, 2026. However, this document remains signed under penalty of perjury on March 5, 2026—meaning that changes were made to this document after it was signed under penalty of perjury and no new signature was provided. For this reason, the proof of service attached to the 3-day notice fails to show proper service within the meaning of Code of Civil Procedure section 1162. For this reason, the demurrer is sustained.

In reviewing the FAC, the court also observes several instances where the allegations are incomplete (item 6a is blank, item 6d does not specify any changes in the monthly rental amount) and conflicting or confusing (item 8b specifies the tenancy was terminated for no-fault just cause, but the 3-day notice is for failure to pay rent). Moreover, the 3-day notice indicates rent is past-due at a rate of \$1,099 per month; however, item 6a(2) specifies a rate of \$1,095 per month. Comparing these allegations, it appears the 3-day notice may overstate the amount of rent due and, if so, would render the 3-day notice void.

Plaintiff is afforded leave to amend and shall file and serve a second amended complaint, if any, by May 18, 2026.

Motion to Strike

Defendants’ motion to strike portions of the first amended complaint is denied as moot in light of the court’s above ruling sustaining the demurrer to the first amended complaint with leave to amend.

6. S-CV-0046823 Casey, Michael P v. Patrick, Sean

Motion to Correct Clerk’s Record

Plaintiff’s motion to correct clerk’s record filed April 13, 2026 is denied without prejudice as there is no evidence in the court’s file this motion was served on defendant.

Motion to Correct Clerk’s Record

On April 21, 2026, plaintiff filed a motion to correct clerk’s record pursuant to Code of Civil Procedure section 399 and 473(d). No opposition has been filed.

Plaintiff describes the procedural history of this case, which is verified by a review of the court’s file, that while the action was initially filed in Sacramento County, it was subsequently transferred by the Sacramento County Superior Court to the Placer County Superior Court. Placer County Superior Court received the transfer on June 10, 2021, filed each individual document into its electronic case file, and issued a notice of receipt

of transfer served on all parties as required by Code of Civil Procedure section 399(b). It is important to note that each document originally filed in Sacramento County and then transferred to Placer County bears the original file-stamp from Sacramento County and the June 10, 2021 file-stamp from Placer County.

Plaintiff understands Section 399's requirement that the court "shall have and exercise over the action or proceeding the like jurisdiction as if it had been originally commenced in that court, all prior proceedings being saved" means that the transferee court must file-stamp all documents the same date that they were file-stamped by the transferor court. The court has searched but is unable to find any legal authority interpreting this language the way plaintiff does, nor has the court located any legal authority that would permit the transferee court clerk to file-stamp a date prior to the date of transfer. Plaintiff has failed to show a clerical error in need of correction within the meaning of Code of Civil Procedure section 473(d).

The motion is denied.

7. S-CV-0050791 Conrad, Ethan v. Gill, Manpreet

Plaintiff's motion for attorneys' fees and prejudgment interest is continued to be heard on **July 14, 2026 at 8:30 a.m. in Department 42**. Plaintiff seeks an award of attorneys' fees as prevailing party after the court granted plaintiff's motion for summary judgment. (Ruling on Submitted Matter, Dec. 8, 2025.) However, there is no evidence plaintiff served the notice of entry of order on defendant. Moreover, plaintiff has not submitted any proposed judgment to the court. Plaintiff is directed to forthwith file and serve a notice of entry of order for the court's December 8, 2025 ruling and to submit a proposed judgment following summary judgment for the court's review.

8. S-CV-0051034 Martinez, Kari v. Acosta, Angelina Aka Rey-Herrera

Motion to Compel Deposition of Defendant's Attorney Robert Gonzalez under CCP § 2025.450; and to Recuse Defense Counsel under California State Bar Rule 3.7; Sanctions Requested

Plaintiff moves to compel the deposition of defendant's attorney Robert Gonzalez. Defendant has not filed a response.

The Court of Appeal has outlined the standard for a motion to depose opposing counsel:

Depositions of opposing counsel are presumptively improper, severely restricted, and require "extremely" good cause—a high standard. (*Spectra-Physics, Inc. v. Superior Court* (1988) 198 Cal.App.3d 1487, 1493.) See *Trade Center Properties, Inc. v. Superior Court* (1960) 185 Cal.App.2d 409, 411.) There are strong policy considerations against deposing an opposing counsel. The practice runs counter to the adversarial process and to the state's public policy to "[p]revent attorneys from taking

undue advantage of their adversary's industry and efforts.” (Code Civ. Proc., § 2018.020 (b).) ““Discovery was hardly intended to enable a learned profession to perform its functions ... on wits borrowed from the adversary.”” (*Spectra–Physics, Inc.*, *supra*, 198 Cal.App.3d at p. 1494, quoting *Hickman v. Taylor* (1947) 329 U.S. 495, 516 (conc. opn. of Jackson, J.).)

To effectuate these policy concerns, California applies a three-prong test in considering the propriety of attorney depositions. First, does the proponent have other practicable means to obtain the information? Second, is the information crucial to the preparation of the case? Third, is the information subject to a privilege? (*Spectra–Physics, Inc.*, *supra*, 198 Cal.App.3d at pp. 1494-96; see also *Estate of Ruchti* (1993) 12 Cal.App.4th 1593, 1601, [affirming protective order against deposition of opposing counsel].)

Carehouse Convalescent Hospital v. Superior Court (2006) 143 Cal.App.4th 1558, 1562-63.

Plaintiff has not met the standard in *Carehouse Convalescent Hospital*. Moreover, plaintiff has not shown how she can compel the deposition of a non-party, absent a subpoena, pursuant to Code Civ. Proc., § 2025.450.

Based on the foregoing, the motion to compel the deposition of defendant’s attorney Robert Gonzalez is denied. The motion to recuse defense counsel under California State Bar Rule 3.7 is denied. The request for sanctions is denied.

9. S-CV-0052777 Reed, Nancy v. Colaw, Ryan

Review Hearing

The court scheduled this hearing for review of a first amended cross-complaint filed under seal pursuant to Insurance Code section 1871.7(e)(2). As a review of the court file reveals no first-amended cross-complaint has been lodged with the court, the review hearing is dropped from calendar.

10. S-CV-0053149 Grussenmeyer, Bonnie J v. Alley, Laura C

This tentative ruling is issued by the Honorable Michael A. Jacques. If oral argument is timely requested, it will be heard on **May 21, 2026 at 8:30 a.m. in Department 40** by Commissioner Jacques.

Motion to Seal

Petitioner moves to seal pages 31 through 184 of the notice of errata filed on November 24, 2025 pursuant to California Rules of Court, rules 2.550 and 2.551. No opposition has

been filed and it appears respondent is in agreement with the motion, in light of the stipulation submitted as Exhibit 2 to the declaration of counsel Alexis Ortega.

Court records are presumed to be open to the public unless confidentiality is required by law. (Cal. Rules of Court, rule 2.550, subd. (c).) This presumption, however, is not absolute. (*McNair v. Natl. Collegiate Athletic Assn.* (2015) 234 Cal.App.4th 25, 31.) The court may order court records sealed pursuant to California Rules of Court rules 2.550 and 2.551, if it makes the following findings: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550, subd. (d).) Here, the court finds based on the moving papers and supporting documents that there exists an overriding interest that overcomes the right of public access to the records to be sealed. The court finds that a substantial probability exists that the overriding interest will be prejudiced if the records are not sealed. The court further finds that the proposed sealing of information is narrowly tailored, and that no less restrictive means to achieve the identified overriding interest exists. (Cal. Rules of Court, rule 2.550(d).)

The court orders sealed pages 31 through 184 of the notice of errata filed on November 24, 2025.

Copies of these documents will be sealed and maintained in the court's electronic file and shall be available only to the court and court personnel. Any person may make a motion to unseal the documents in accordance with California Rules of Court, rule 2.551(h).

11. S-CV-0054129 Faqurzadeh, Nabila v. CSAA Ins. Exchange

Motion to Compel Uninsured Motorist Arbitration

CSAA Insurance Exchange moves this court for an order compelling claimant Nabila Faqurzadeh to binding uninsured motorist arbitration with Retired Judge David Brown through JAMS Alternative Dispute Resolution. Claimant has not filed a response or yet appeared in this case.

Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration "if [the court] determines that an agreement to arbitrate the controversy exists." (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59.) "A party seeking to compel arbitration has the burden of proving the existence of a valid agreement to arbitrate. Once that burden is satisfied, the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition." (*Sparks v. Vista Del Mar Child & Family Services* (2012) 207 Cal.App.4th 1511, 1518, abrogated by *Harris v. TAP Worldwide, LLC* (2016) 148 Cal.App.4th 373 on other grounds.)

Although CSAA Insurance Exchange submits evidence of an agreement to arbitrate (see Anderson Decl. & Exh. A), proof of service of the motion on claimant Nabila Faqurzadeh appears deficient. Code Civil Procedure section 1290.4 (b) states as follows: “If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: (1) service within this state shall be made in the manner provided by law for the service of summons in an action.” CSAA Insurance Exchange does not demonstrate service of the motion pursuant to Code of Civil Procedure section 1290.4(b).

Given this procedural deficiency, the motion is continued for proper service. CSAA Insurance Exchange shall file and serve notice of the continued hearing date on claimant.

The motion to compel uninsured motorist arbitration is continued to **July 7, 2026, at 8:30 a.m., in Department 42.**

12. S-CV-0054315 Somera, Jason Rusty v. Am. Honda Motor Co.

Plaintiff is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys’ Fees

Plaintiff moves for an award of attorneys’ fees in the amount of \$14,242.50 (incurred fees of \$13,352.50 plus \$890 in anticipated fees) and costs of \$892.42. Plaintiff had initially moved for a larger amount of anticipated fees, but reduced the total sought by way of reply brief. Defendant opposes the motion.

A prevailing party in an action under the Song-Beverly Consumer Warranty Act (Civ. Code, §§ 1790 et seq.) shall recover costs and expenses, including attorneys’ fees actually incurred, “determined by the court to have been reasonably incurred” (Civ. Code, § 1794, subd. (d).) A prevailing party includes “the party with a net monetary recovery” or one who “realized its litigation objectives,” including in instances of settlement. (Code Civ. Proc., § 1032, subd. (a)(4); *Kim v. Euromotors West/The Auto Gallery* (2007) 149 Cal.App.4th 170, 179–80.) Here, plaintiff presents evidence that the parties reached a settlement providing for defendant’s buyback of the subject vehicle and that defendant would pay plaintiff’s attorneys’ fees and costs as determined by the court. (Kim Decl., ¶ 31.) While plaintiff did not provide a copy of the settlement agreement, the settlement and its terms appear to be conceded by defendant. (See generally, opposition.) The court finds plaintiff is the prevailing party, having obtained the objective of this litigation, and is entitled to seek an award of attorneys’ fees pursuant to Civil Code section 1794(d).

The court must next address whether the request for \$14,242.50 in attorneys’ fees is reasonable. Determining the reasonable amount of attorneys’ fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano*

v. Priest (Serrano III) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel June Kim and exhibits thereto. Plaintiff's counsel's firm charged hourly rates of \$530 for counsel Vanessa Oliva, rates ranging from \$415 to \$445 for counsel June Kim, and rates ranging from \$210 to \$215 for two paralegals. The court finds a reduction in hourly rate is required in light of the cost of comparable legal services in Placer County for a case of this nature. The court finds an hourly rate of \$450 is reasonable for counsel Oliva, an hourly rate of \$415 is reasonable for counsel Kim, and an hourly rate of \$150 is reasonable for paralegal services.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declaration of counsel Kim and the billing invoice attached thereto as Exhibit 6. The billing invoice supports 33.90 total hours of incurred time. Plaintiff also submits evidence supporting 4.6 hours incurred drafting this motion for fees and reviewing the opposition and preparing the reply. (Supp. Decl. Kim.) With respect to Exhibit 6, the court observes a few instances where the work appears duplicative or unnecessary to the prosecution of the action. The court also observes instances where the work performed is insufficiently explained. In light of these observations, a small reduction in hours is appropriate and the court approves a total of 31.4 hours. This total includes both the time incurred while the case was pending and on litigating this motion for fees. The court awards plaintiff attorneys' fees as follows:

- 1.9 hours at a reduced hourly rate of \$450 (counsel Oliva)
- 25.4 hours at a reduced hourly rate of \$415 (counsel Kim)
- 4.1 hours at a reduced hourly rate of \$150 (paralegals Carreno and Caro)

As to costs, plaintiff seeks \$892.42 and provides a memorandum of costs supporting that amount. Defendant concedes this amount both by not timely filing a motion to tax costs and expressly in the opposition. The court awards costs of \$892.42 as requested.

Accordingly, plaintiff's motion is granted in part. Plaintiff is awarded attorneys' fees of \$12,011 and costs in the amount of \$892.42 for a total of \$12,903.42.

13. S-CV-0054661 Natl. Default Serv. Corp. v. Claimants to Surplus Funds

Review Hearing Regarding Stay

All claimants to surplus funds from the trustee's sale of real property known as 6503 Turnstone Way, Rocklin, California 95765 are required to appear in court on **May 12, 2026 at 8:30 a.m. in Department 42.**

14. S-CV-0054691 Lewis, Christopher v. Sugar Bowl Corp.

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement and plaintiff's moving papers filed in connection with the motion, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class for the purposes of settlement as, "all current and former non-exempt California employees of Defendant who worked for Defendant at any time during the period from February 21, 2021 through the date the court grants preliminary approval of the settlement [May 12, 2026] who were employed in positions categorized as 'Mountain Positions.'"

The court preliminarily approves the class action and PAGA action settlement agreement attached as Exhibit B to the declaration of counsel Otkupman with one change as to administration costs. While the moving papers request settlement administration costs of up to \$25,000, plaintiff submits evidence supporting administration costs of \$9,450 and plaintiff submitted a proposed order on May 4, 2026 including costs of the lesser amount of \$9,450. The court approves settlement administration costs of \$9,450.

The court also approves the proposed form of noticed attached as Exhibit 1 to the proposed order submitted on May 4, 2026. The court approves the proposed request for exclusion form attached as Exhibit D to the Otkupman declaration.

The court appoints and designates Christopher Lewis as the class representative. The court appoints and designates Otkupman Law Firm, A Law Corporation as class counsel for the purpose of settlement. The court appoints and designates ILYM Group, Inc. as the settlement administrator. The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted on May 4, 2026.

The final approval hearing is scheduled for **November 10, 2026 at 8:30 a.m. in Department 42**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b).

15. **S-CV-0054943 Haviland, Elizabeth v. The Life is Good Co.**

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the First Amended Complaint ("FAC")

Defendant demurs to the FAC contending it fails to state a cause of action pursuant to Code of Civil Procedure section 430.10(e). Plaintiff opposes the demurrer.

A party may demur when a pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.) Grounds for demurrer to an amended complaint shall not lie if those grounds could have been raised by prior demurrer. (Code Civ. Proc., § 430.41, subd. (b).)

The court has carefully reviewed the FAC and determines plaintiff adequately addressed the grounds on which the demurrer to the initial complaint was sustained. The court declines to consider defendant's new arguments that could have been raised by the prior demurrer. In summary, the court finds the FAC sufficiently alleges a cause of action under California's Invasion of Privacy Act.

The demurrer is overruled and defendant shall file and serve a responsive pleading by May 22, 2026.

Motion to Quash

The motion to quash is dropped from calendar as no moving papers were filed with the court.

16. S-CV-0056291 Fisher, Jeffrey P v. Hansen, Brenda Lee

The petition to confirm appraiser's award is dropped as moot in light of the order on stipulation filed on May 5, 2026.

The court vacates the hearing on the petition to confirm appraiser's award scheduled for September 8, 2026 in light of the order on stipulation filed on May 5, 2026.

The order to show cause hearing regarding status of stay currently scheduled for **July 27, 2026 at 3:30 p.m. in Department 40** shall be heard on the same date, time, and department for an order to show cause hearing regarding entry of judgment.

17. S-CV-0056373 City of Lincoln v. Shelgren, Christian A

Petition for order to abate substandard building; appointment of receiver; requiring reimbursement

Petitioner seeks a court order to abate substandard building; order to appointment of receiver; and an order requiring reimbursement.

Petitioner states in the petition that the following parties have a recorded interest in the property and are entitled to notice of hearing: (1) the Placer County Tax Collector; (2) United States of America acting through the Farmers Home Administration, United States Department of Agriculture; and (3) LVNV Funding, LLC. All three are entitled to notice under California Health and Safety Code § 17980.7 (c). (Petition at 6.)

The court previously continued the matter on March 17, 2026, for insufficient notice of hearing on interested parties and lack of proper proof of service of summons for the respondent. After the continuance, petitioner sent notice of hearing to all interested parties but has not filed an amended proper proof of service for the respondent property owner.

A petition to abate substandard building; order to appointment of receiver; and an order requiring reimbursement, when filed in a new action, must be served in the same manner as a summons. (Health & Saf. Code, § 17988; Code Civ. Proc., § 1290.4 (b).) While there is proof of service of summons in the court's file (filed March 3, 2026), it has no name listed under the party served, number 3a. Therefore, there is insufficient proof of service of summons on record for the respondent pursuant to Code of Civil Procedure section 415.10. Given this procedural deficiency, the petition is denied.

The motion on the petition to abate substandard building; order to appointment of receiver; and an order requiring reimbursement is denied, without prejudice, for petitioner to file a proper proof of service of summons for the respondent and serve and file a notice of hearing on the respondent and all interested parties with a new reserved hearing date.

18. S-CV-0056629 Olin, John v. Olin, Allan

The motion to consolidate is dropped from calendar as no moving papers were filed with the court.

19. S-CV-0056807 In Re the Petition of Brooklynn Sanford

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

20. S-CV-0056809 Onesi, Christine v. City of Lincoln

Petitioner is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition for Relief Under the Government Claims Act

Petitioner moves for an order relieving her from the requirements of Government Code section 945.4 on her personal injury claim. Respondent opposes the petition.

Preliminarily, the petition appears to argue both that petitioner timely submitted her claim to the City of Lincoln and that this claim substantially complied with all requirements while also arguing the court should relieve petitioner from submitting her claim to the City of Lincoln because of "mistake, inadvertence, surprise, or excusable neglect." However, it is only the latter issue that is before this court on this petition. This court has no jurisdiction on a petition for relief from the claims presentation requirement to determine whether petitioner's claim was timely or that it substantially complied with all requirements. (*Ngo v. County of Los Angeles* (1989) 207 Cal.App.3d 946, 951.) This court therefore presumes but does not find the claim was untimely and analyzes whether petitioner is entitled to relief from the requirements of Government Code section 945.4. For the same reason, respondent's argument lacks merit that this petition necessarily fails because claim presentation was timely; that issue is not before this court on this petition.

In order to initiate an action for money or damages against public entities, a claim must be presented in accordance with the requirements in Government Code sections 900 and 910. (Gov. Code, § 945.4.) Government Code Section 911.2 provides, "A claim relating to a cause of action for . . . injury to a person . . . shall be presented . . . not later than six months after the accrual of the cause of action." (Gov. Code, § 911.2, subd. (a).) However, if a claim is not timely presented, the injured party may apply to the public entity for leave to present the claim. (*Id.*, § 911.4, subd. (a).) This "application shall be presented to the public entity . . . within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in presenting the claim." (*Id.* at subd. (b).)

If the public entity denies the application for leave to file an untimely claim, the injured party may petition the court for an order relieving him or her of the claim requirements. (*Id.*, § 946.6, subd. (a).) This application "shall be filed within six months after the application to the board is denied or deemed to be denied . . ." (*Id.* at subd. (b).) Government Code section 946.6 is a remedial statute that is to be liberally construed. (See, e.g., *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 273–

74.) It is mandatory for the court to relieve the injured party “from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed [one year after the accrual of the cause of action] and was denied or deemed denied pursuant to Section 911.6” (Gov. Code, §§ 946.6, subd. (c); 911.4, subd. (b).) Moreover, a petitioner must show by a preponderance of the evidence one or more of the following:

- (1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.
 - (2) The person who sustained the alleged injury, damage, or loss was a minor during all of the time specified in Section 911.2 for the presentation of the claim.
 - (3) The person who sustained the alleged injury, damage, or loss was a minor during any of the time specified in Section 911.2 for the presentation of the claim, provided the application is presented within six months of the person turning 18 years of age or a year after the claim accrues, whichever occurs first.
 - (4) The person who sustained the alleged injury, damage, or loss was physically or mentally incapacitated during all of the time specified in Section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time.
 - (5) The person who sustained the alleged injury, damage, or loss was physically or mentally incapacitated during any of the time specified in Section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time, provided the application is presented within six months of the person no longer being physically or mentally incapacitated, or a year after the claim accrues, whichever occurs first.
 - (6) The person who sustained the alleged injury, damage, or loss died before the expiration of the time specified in Section 911.2 for the presentation of the claim.
- (Gov. Code, § 946.6, subd. (c)(1)–(6); *Santee v. Santa Clara County Office of Educ.* (1990) 220 Cal.App.3d 702, 717.)

Here, petitioner contends Government Code section 946.6(c)(1) applies as the failure to timely submit a claim was through petitioner’s “mistake, inadvertence, surprise, or excusable neglect” and respondent would not be prejudiced if the instant petition was granted. “The showing required of a petitioner seeking relief [to file a late claim] because of mistake, inadvertence, surprise or excusable neglect . . . is the same as required under section 473 of the Code of Civil Procedure.” (*Nilsson v. City of Los Angeles* (1967) 249 Cal.App.2d 976, 979.) If petitioner meets their burden of showing mistake, inadvertence, surprise, or excusable neglect, the burden shifts to respondent to demonstrate prejudice. (*Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, 1386.) If, however, a petitioner falls short of their burden, prejudice is irrelevant and the petition must be denied. (*Dept. of Water & Power v. Super. Court* (2000) 82 Cal.App.4th 1288, 1297.)

Here, the application for late filed claim was submitted within one year of when the cause of action accrued and was therefore timely. This petition was filed within six months of when respondent denied the late-claim application and is likewise timely. In support of her burden, petitioner presents the declaration of counsel Sandra Duritza who presents several exhibits, including several pleadings in the related personal injury case, the notice of claim, respondent's rejection, application for leave to present the late claim and rejection. However, no evidence is submitted to support petitioner's burden of showing mistake, inadvertence, surprise, or excusable neglect. Petitioner falls short of her burden of proof so the burden does not shift to respondent to show prejudice.

Based on the foregoing, the motion is denied.

21. S-CV-0056823 In Re the Petition of US Night Vision Corp.

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Second amended petition for: 1) court supervision of voluntary winding up proceeding; and 2) removal of John Barbieri as a director of US Night Vision corporation

Petitioners Chris Byrd and US Night Vision corporation petition this court for court supervision of voluntary winding up proceeding and removal of John Barbieri as a director of US Night Vision corporation. Respondent John Barbieri opposes the petition substantively and also objects on the grounds the operative second amended petition, filed March 12, 2026, was not properly served on respondent, is not accompanied by evidence, and suggests a future memorandum will be filed which does include supporting evidence.

Based on the foregoing procedural deficiencies, the second amended petition is denied without prejudice.

22. S-CV-0056825 In Re the Petition of Forward Financing LLC

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition to confirm arbitration award

The unopposed petition to confirm the arbitration award is granted as prayed. The court confirms the final award entered on November 10, 2025. Judgment is entered in favor of Forward Financing LLC, and against David Miller dba Customer Door Specialists; David Miller, an individual for \$35,260.00 in principal, and \$618.91 in court costs, for a total judgment amount of \$35,878.91.